

ALITO, J., dissenting

Second Circuit wrote that sex is necessarily “a factor in sexual orientation” and further concluded that “sexual orientation is a function of sex.” 883 F. 3d 100, 112–113 (2018) (en banc). Bostock’s brief and those of *amici* supporting his position contend that sexual orientation is “a sex-based consideration.”¹² Other briefs state that sexual orientation is “a function of sex”¹³ or is “intrinsically related to sex.”¹⁴ Similarly, Stephens argues that sex and gender identity are necessarily intertwined: “By definition, a transgender person is someone who lives and identifies with a sex different than the sex assigned to the person at birth.”¹⁵

It is curious to see this argument in an opinion that purports to apply the purest and highest form of textualism because the argument effectively amends the statutory text. Title VII prohibits discrimination because of *sex itself*, not everything that is related to, based on, or defined with reference to, “sex.” Many things are related to sex. Think of all the nouns other than “orientation” that are commonly modified by the adjective “sexual.” Some examples yielded by a quick computer search are “sexual harassment,” “sexual assault,” “sexual violence,” “sexual intercourse,” and “sexual content.”

Does the Court really think that Title VII prohibits discrimination on all these grounds? Is it unlawful for an employer to refuse to hire an employee with a record of sexual harassment in prior jobs? Or a record of sexual assault or violence?

To be fair, the Court does not claim that Title VII prohibits discrimination because of *everything* that is related to

¹² Brief for Petitioner in No. 17–1618, p. 14; see also Brief for Southern Poverty Law Center et al. as *Amici Curiae* 7–8.

¹³ Brief for Scholars Who Study the LGB Population as *Amici Curiae* in Nos. 17–1618, 17–1623, p. 10.

¹⁴ Brief for American Psychological Association et al. as *Amici Curiae* 11.

¹⁵ Reply Brief for Respondent Aimee Stephens in No. 18–107, p. 5.